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TENTATIVE RULING

July 30, 2026

25SMCV04926 (Oritz v. Stache West
Hollywood, et. al.)

RELEVANT BACKGROUND

On September 22, 2025, plaintiff Jeremiah Ortiz (Plaintiff) filed his complaint against Stache West Hollywood (Stache); Arc Group Agency Corp Db a Arc Lifestyle & Protection (Arc); Robin Liott (Lriott) individually as Trustee of the Robin Liott Revocable Trust (Trust); Joanne Nathan (Nathan); and Pinherio Da Silva (Da Silvia). Plaintiff alleges five causes of action: assault; battery; intentional infliction of emotional distress (IIED); negligence; negligent hiring; supervision; and retention.

This case arises from a physical altercation that allegedly occurred on the patio area of a restaurant located at 8941 Santa Monica Blvd., West Hollywood, on September 29, 2023. (Complaint, ¶¶ 7, 8.) Plaintiff alleges he was in the patio area of the premises when he was notified that his food order was ready from the restaurant next door. (Id. ¶ 8). According to Plaintiff, he left to pick up his order and, when he returned to the patio area, defendant Da Silva, a security guard, asked him to leave. (Id. ¶ 8). Plaintiff alleges that defendant Da Silva approached him and leaned forward within inches of him and loudly threatened to touch and/or grab Plaintiff. (Id. ¶ 15). Plaintiff further alleges that as he was leaving,

Da Silva physically attacked him. (Id. ¶ 8). Plaintiff also claims that he did not batter De Silva before, during, or after the alleged attack. (Id. ¶ 10.)

INSTANT MOTION

On February 20, 2026, Stache, Liotta, Trust, and Nathan (Defendants) filed the instant demurrer. Plaintiff filed an opposition, and Defendants filed a reply.

MEET AND CONFER

The Court finds that Defendants have satisfied the meet and confer requirement. (Thomson Decl.)

DISCUSSION

I.

DEMURRER

A.

Assault,
Battery, and IIED

“The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed [he or] she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant’s conduct; (4) plaintiff was harmed; and (5) defendant’s conduct was a substantial factor in causing plaintiff’s harm.” (So v. Shin (2013) 212 Cal.App.4th 652, 668-669.)

“The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant’s conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” (So, 212 Cal.App.4th at pp. 668-669.)

“The elements of a prima facie case

for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.) “Whether a defendant’s conduct can reasonably be found to be outrageous is a question of law that must initially be determined by the court; if reasonable persons may differ, it is for the jury to determine whether the conduct was, in fact, outrageous.” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 534.)

“Under the common law doctrine of

respondeat superior, a principal or employer is vicariously liable for the acts of an agent or employee committed in the course of employment.” (Lathrop v. HealthCare Partners Medical Group (2004) 114 Cal.App.4th 1412, 1421; accord Lisa M. v. Henry Mayo Newhall Mem’l Hosp. (1995) 12 Cal.4th 291, 297; Myers v. Trendwest Resorts, Inc. (2007) 148 Cal.App.4th 1403, 1427.) Employers may be liable for intentional or malicious torts or criminal acts, done outside the scope of employment, where they arise from the work and are a predictable risk of the work. (Flores v. Autozone W. (2008) 161 Cal.App.4th 373, 379, 380 [“an employee’s willful, malicious and even criminal torts may fall within the scope of his or her employment for purposes of respondeat superior, even though the employer has not authorized the employee to commit crimes or intentional torts.”].) ““An employer may ... be vicariously liable for the employee’s tort—even if it was malicious, willful, or criminal—if the employee’s act was an outgrowth of his employment, inherent in the working environment, typical of or broadly incidental to the employer’s business, or, in a general way, foreseeable from his duties.” (Unruh-Haxton v. Regents of University of California (2008) 162 Cal.App.4th 343, 368.)

Here,

Defendants argue that Plaintiff fails to allege facts sufficient to establish that they are liable for De Silva’s conduct because the alleged acts were not within the course and scope of Da Silva’s employment. Defendants state that there are no facts pleaded that suggest that physically assaulting and battering another was an outgrowth of Da Silva’s duties as a security guard.

Defendants cite *Lisa M.*, supra, 12 Cal.4th 291. Further, Defendants argue that the conduct was not foreseeable, because there are no facts in the complaint showing that Da Silva had a prior incident of misconduct.

Additionally,

Defendants assert that Plaintiff fails to sufficiently allege who employed Da Silva, as the complaint alleges only that Da Silva was a “direct employee” of the defendants. (Complaint, ¶ 4.)

Further,

Defendants argue that Plaintiff failed to plead sufficient facts to establish that the Defendants ratified Da Silva’s alleged misconduct, because the complaint merely states in a conclusory manner that “Plaintiff is further informed and believes, and thereon alleges, that each of the Defendants herein gave consent to, ratified, and authorized the acts alleged herein to each of the remaining Defendants.” (Complaint, ¶ 6.)

With

respect to Stache, Defendants highlight that the complaint does not identify a managing agent with knowledge of the conduct who possessed a degree of discretion over decisions that would ultimately determine corporate policy, citing *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 571 and *Agarwal v. Johnson* (1979) 25 Cal.3d 932, 952.

Lastly,

with respect to the IIED claim, Defendants argue that it is entirely duplicative of his assault-and-battery claims and “adds nothing to the complaint by way of fact or theory of recovery,” citing *Rodrigues v. Campbell Industries* (1978) 87 Cal.App.3d 494, 501.

The

Court agrees with Defendants that the complaint fails to allege facts sufficient to establish Defendants’ liability for the Da Silva’s alleged intentional misconduct. First, it is unclear from the allegations whether De Silva was employed by Defendants, and if so, which Defendant(s) employed him. Additionally, Plaintiff has not alleged sufficient facts to show that Defendants had any knowledge of the possibility of the alleged conduct by Da Silva or that Defendants failed to act in some manner for which they had authority after learning of the incident.

The

Court is not persuaded by Plaintiff's argument in opposition. Plaintiff cites paragraphs 22-23, 32-33, 42-43, 55 in the complaint. But none of those allegations show that Defendants had any knowledge of the possibility of the alleged conduct by Da Silva or that Defendants failed to act in some manner for which they had authority after learning of the incident. (See Compl. ¶¶ 22-23, 32-33, 42-43, 55.) Additionally, Plaintiff contends in opposition that "[w]hat makes this conduct especially outrageous is that it was committed by a security guard – an individual entrusted with the duty to protect, observe, and report" and that he failed "to fulfill[] [his] responsibilities." (Opp. at p. 13.) This is consistent with Defendants' argument that the alleged assault could not have been within the scope of his employment, and the allegations in the complaint fail to show otherwise.

The

Court finds that leave to amend is appropriate because it is reasonably possible for Plaintiff to cure the defects through amendment.

Accordingly,

Defendants' demurrer to the first, second, and third causes of action are SUSTAINED WITH LEAVE TO AMEND.

B. Negligence

In order to state a claim for negligence, a plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.)

California law requires

landowners to maintain land in their possession and control in a reasonably safe condition. (Civ. Code, § 1714.) In cases involving third parties, businesses (because they generally stand in a special relationship with their tenants, patrons, or invitees) have an affirmative duty to take reasonable steps to secure their premises, as well as adjacent common areas within their control, against reasonably foreseeable criminal acts of third parties. (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 235.) "[F]oreseeability is of primary importance in establishing the element of duty" for the wrongdoing of third parties giving rise to premises liability." (*Issacs v. Huntington Mem. Hosp.*

(1985) 38 Cal.3d 112, 123.)

Here, Defendants assert that, as stated above, Plaintiff alleges no facts to suggest that the alleged incident should have been foreseeable to Defendants. Plaintiff's opposition fails to address this argument regarding foreseeability. (See Opp. at p. 16-17.) The Court agrees with Defendants that the Complaint fails to allege facts showing that the alleged incident was foreseeable to Defendants or that Defendants had any knowledge of the possibility of the alleged conduct by Da Silva. But the Court finds that leave to amend is appropriate because it is reasonably possible to cure the defects through amendment.

In opposition, Plaintiff cites paragraphs 9, 11, 24, 25, 27, and 28 in the complaint. But all of these allegations are conclusory and do not address the above deficiencies. (See Compl. ¶¶ 9, 11, 24, 25, 27, and 28.)

Accordingly, the demurrer to the fourth cause of action is SUSTAINED WITH LEAVE TO AMEND.

C. Negligent Hiring, Supervision, and Retention

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th 828, 836-837.)

"An employer may be liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit. [Citation.]" (Roman Catholic Bishop v. Superior Court (1996) 42 Cal.App.4th 1556, 1564–1565.) "Liability for negligent hiring . . . is based upon the reasoning that if an enterprise hires individuals with characteristics which might pose a danger to customers or other employees, the enterprise should bear the loss caused by the wrongdoing of its incompetent or unfit employees." (Mendoza v. City of Los Angeles (1998) 66 Cal.App.4th 1333, 1339.)

The

Court finds that the complaint fails to allege facts sufficient to state a cause of action for negligent hiring, supervision, and retention. As set forth above, the Court it is unclear from the allegations whether De Silva was employed by Defendants, and if so, which Defendant(s) employed him.

Additionally, Plaintiff

has not alleged sufficient facts to show that Defendants had any knowledge of the possibility of the alleged conduct by Da Silva or that Defendants failed to act in some manner for which they had authority after learning of the incident.

But the Court finds that leave to amend is appropriate because it is reasonably possible to cure the defects through amendment.

In

opposition, Plaintiff cites paragraphs 54 and 55 of the complaint, but these allegations are conclusory and are devoid of any supporting facts. (Compl. ¶ 54 [“Plaintiff is further informed and believes, and based thereon alleges, that Defendants knew or should have known, through the exercise of reasonable care, that Defendant PINHERIO DA SILVA was unfit or incompetent, and that this unfitness created a particular risk of harm to others, including Plaintiff.”]; 55 [“Despite having actual knowledge, or being in a position where they should have known through the exercise of reasonable care, Defendants...failed to take appropriate action...”].)

Accordingly, the demurrer to the

fifth cause of action is SUSTAINED WITH LEAVE TO AMEND.